India Patent Filing Checklist

November 10, 2026

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India Patent Filing Checklist

Official starting points:

- Indian Patent Office Filing Process
- Forms and Official Fees
- Rule 13: Specifications
- Guidelines for Examination of Computer Related Inventions
- Section 39: Residents Not to Apply Outside India Without Prior Permission

This checklist is procedural guidance, not legal advice.

A. Before choosing filing order

- ☐ Identify the residence of every inventor and applicant.
- ☐ Determine whether any inventor is employed in India and whether employer-assignment obligations apply.
- ☐ If a person resident in India will cause the first filing to be made outside India, obtain written foreign-filing permission on **Form 25**, unless an Indian application for the same invention was filed at least six weeks earlier and no secrecy direction applies.
- ☐ Obtain Indian patent-agent advice about the effect of public disclosure on 10 November 2026 under India's absolute-novelty regime.
- ☐ Confirm whether a foreign or PCT priority application already exists.

B. Indian provisional application

- ☐ **Form 1**: Application for grant of patent.
- ☐ **Form 2**: Provisional specification with the preamble "The following Specification describes the invention".
- ☐ Drawings when required to understand the invention.
- ☐ Prescribed filing fee at verified entity status.
- ☐ **Form 3**: Statement and undertaking under Section 8 if foreign applications exist or are later filed.
- ☐ **Form 26**: Authorization if using a patent agent.
- ☐ **Form 28**: Startup or small-entity declaration if applicable.

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- [ ] File complete specification within **12 months**. The official filing guidance states there is no extension for this deadline.

C. Indian complete specification

- [ ] `INDIA_COMPLETE_SPECIFICATION_FORM2_DRAFT.md` transferred into official **Form 2** format.
- [ ] Preamble: “The following specification particularly describes the invention and the manner in which it is to be performed.”
- [ ] Title normally no more than 15 words.
- [ ] Fully and particularly describe the invention, operation/use, and method of performance.
- [ ] Disclose the best method known to the applicant.
- [ ] End with claims defining the protection sought.
- [ ] Abstract of no more than 150 words, stating the technical field, advancement, and principal use.
- [ ] Black-and-white drawings under Rule 15 with reference signs used consistently in the description and claims.
- [ ] **Form 5** declaration as to inventorship with the complete specification or within the permitted Rule 13 period.

D. Examination and publication

- [ ] **Form 9** for early publication if desired; otherwise ordinary publication generally occurs after the statutory period.
- [ ] **Form 18** request for examination within the applicable statutory period.
- [ ] **Form 18A** expedited examination only if the applicant falls within an eligible category and can substantiate it.
- [ ] Continue updating **Form 3 / Section 8** foreign-filing information as required.
- [ ] Respond to the First Examination Report within the period specified by the Patent Office.

E. Section 3(k) claim strategy

INCLUDE

- Physical blast-furnace sensors and industrial historian interface.

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- Read-only protocol restrictions.
- Physical process roles and transport/residence times.
- Pressure-conservation identity and measured-sensor anchoring.
- Physical productivity ceilings and technical suppression of unsupported advice.
- Technical effects: improved physical-state diagnosis, reduced false-cause assignment, conservation consistency, and prevention of extrapolated furnace advice.

AVOID AS INDEPENDENT CLAIM FOCUS

- “A computer program configured to…”
- “An algorithm for…”
- A claim whose only output is information presentation.
- Pure mathematical formulas or generic Mahalanobis, regression, or neural-network operations.
- Business/ROI optimization detached from physical furnace behavior.
- Generic “processor and memory” recitations without the industrial sensor and process effect.

F. Foreign and PCT route

- An Indian resident can file PCT through RO/IN, subject to Section 39.
- If claiming Indian provisional priority, file the PCT/foreign application before the 12-month priority deadline.
- The PCT application must include description, claims, abstract, and drawings.
- India and other absolute-novelty jurisdictions require urgent counsel review because public disclosure has already occurred.

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